

## 26SMCV00893 26SMCV00893

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-09-17

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Case Number: 26SMCV00893 Hearing Date: September 17, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

JANE DOE,

Plaintiff,

v.

RISE LUXURY REHAB, LLC, et al.,

Defendants.

Case No.: 26SMCV00893

Hearing Date: September 17, 2026

[TENTATIVE] order RE:

Defendants patrick mitchell

AND PARVIZ DAMAVANDI's

DEMURRER TO COMPLAINT

This case arises from alleged sexual abuse at a drug rehabilitation facility. Defendant Rise in Malibu operates a non-medical residential Alcohol and Other Drug ("AOD") recovery or treatment facility in Malibu, California. Plaintiff Jane Doe claims that while she was a patient there, John Doe sexually assaulted her.

Plaintiff alleges that "JOHN DOE was placed in unsupervised, intimate, one-on-one contact with Plaintiff in direct violation of all reasonable safety standards. Acting under the cover of his position as a counselor, medication dispenser, and overnight 'watch' technician, JOHN DOE used his authority to gain Plaintiff's trust, access her confidential treatment information, and ultimately subject her to repeated sexual assaults." Plaintiff claims that even after her discharge, JOHN DOE would ply her with drugs and alcohol, causing relapse, and contributing to a near-fatal overdose.

Plaintiff has sued Rise in addition to other individual defendants including the Founder, CEO and CFO of Rise: Ronald Finnerman, Patrick Mitchell and Parviz Damavandi, respectively. The operative complaint alleges nine claims for: (1) negligence, (2) negligent hiring, training, supervision and retention, (3) negligent failure to warn and/or educate, (4) unfair business practices, (5) physical abuse of a dependent adult, (6) neglect of a dependent adult, (7) sexual harassment, (8) negligent misrepresentation, and (9) negligence per se.

This hearing is on Defendants Mitchell and Damavandi's demurrer to and motion to strike the Complaint. Moving Defendants argue that the Complaint's group pleading fails to allege any individual conduct by Mitchell or Damavandi and is uncertain as to them. In addition, they assert that Plaintiff cannot artificially split her negligence-based claims (negligence, negligent hiring, negligent failure to warn, negligent misrepresentation and negligence per se). And the Complaint does not allege that either individual defendant was personally involved in the hiring or supervising JOHN DOE or personally authorized or ratified his conduct. Moving Defendants further claim that JOHN DOE was motivated by personal objectives and therefore they could not be vicariously liable for his actions. As to the unfair business practices claim, Moving Defendants argue that there is no allegation of a habitual violation. As to the physical abuse and neglect of a dependent adult claims, Moving Defendants argue that Plaintiff does not qualify as a dependent adult; the allegations do not support a finding of abuse or neglect, and Plaintiff has not alleged that either individual defendant assumed any custodial relationship with Plaintiff or was personally engaged in or recklessly indifferent to egregious abuse or neglect.

Code Civ. Proc. §§ 430.41 and 435.5 requires that before the filing of a demurrer or motion to strike, the moving party "shall meet and confer in person or by telephone" with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41(a), 435.5(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41(a)(2), 435.5(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41(a)(3), 435.5(a)(3).)

Moving Defendants submit the Declaration of Sarv Homayounpour who fails to attest that he met and conferred telephonically or in person with Plaintiff's counsel. Rather, he admits that his "meet and confer" was about seeking an extension to file a responsive pleading to Plaintiff's Complaint. The email correspondence he attaches shows that he only requested an extension from Plaintiff and never discussed the actual substance of the demurrer and motion to strike.

To be sure, the Court cannot overrule a demurrer or deny a motion to strike based on an insufficient meet and confer. However, here, there was no meet and confer at all. The Court cannot ignore Moving Defendants' blatant disregard of the procedural rules. Accordingly, the Court takes the demurrer and motion to strike off calendar.

IT IS SO ORDERED.

DATED: September 17, 2026 \_\_\_\_\_

Edward B. Moreton, Jr.

Judge of the Superior Court